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South Africa

Disaster Management Act, 2002

Directions Regarding the Re-opening of Schools and Measures to Address, Prevent and Combat the Spread of COVID-19 in the National Department of Basic Education, and Provincial Departments of Education, and All Schools in the Republic of South Africa

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Disaster Management Act, 2002

Directions Regarding the Re-opening of Schools and Measures to Address, Prevent and Combat the Spread of COVID-19 in the National Department of Basic Education, and Provincial Departments of Education, and All Schools in the Republic of South Africa

General Notice 42 of 2021

Published in Government Gazette no. 44154 on 12 February 2021
Assented to on 12 February 2021

Commenced on 12 February 2021

[Up to date as at 28 May 2021]

I, Angelina Matsie Motshekga, Minister of Basic Education, in terms of regulation 4(3)(b), read with regulation 33A, of the Regulations made under section 27(2) of the Disaster Management Act, 2002 (Act No. 57 of 2002), as published under Government Notice No. R.480, in Government *Gazette* No. 43258 of 29 April 2020, as amended, hereby issue the Directions in the Schedule regarding the reopening of schools and measures to address, prevent and combat the spread of COVID-19 in the National Department of Basic Education, all Provincial Departments of Education, all education district offices and all schools in the Republic of South Africa.

Mrs AM Motshekga, MP

Minister of Basic Education

1. Definitions

In these Directions, a word or expression bears the meaning assigned to it in the South African Schools Act, the Disaster Management Act or in the Regulations, and, unless the context indicates otherwise—

"**COVID-19 essentials**" means the Basic Hygiene and Sanitation Package for each school, as contained in Appendix 1 to the DBE Guidelines;

"**DBE Guidelines**" means the Department of Basic Education Guidelines on Maintaining Hygiene during the COVID-19 Pandemic, available on the Department of Basic Education website, accessible through the following link:

https://www.education.gov.za/Portals/0/Documents/Recovery%20plan%20page/Links%20for%20schools/guidelines-for-schools-on-maintaining-hygiene.pdf;

"**DBE Standard Operating Procedures**" means the Department of Basic Education Standard Operating Procedures for the Prevention, Containment and Management of COVID-19 in Schools and School Communities, available on the Department of Basic Education website, accessible through the following link:

https://www.education.gov.za/Portals/0/Documents/Recovery%20plan%20page/Links%20for%20schools/dbe-standard-operating-procedure-for-covid-19.pdf

"**Department of Basic Education**" means the National Department of Basic Education;

"**Department of Health Guidelines**" means the Guidelines for symptom monitoring and management of essential workers for COVID-19 related infection, issued by the Department of Health in April 2020, accessible through the following link:

https://www.saiosh.co.za/news/502409/Guidelines-for-symptom-monitoring-andmanagement-of-%20essential-

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workers-for-COVID-19-related-infection.htm;

"**education support centres**" means a centre that offers curricular support or extra tuition to learners;

"**hostels**" means boarding houses run by a school, whether on school property or not, for the purpose of providing accommodation to learners registered at the school;

"**offices**" includes the Provincial Departments of Education, and the Department of Basic Education;

"**official**" means—

(a) an employee appointed by the school governing body, in terms of section 20(4) and (5) of the South African Schools Act;

(b) a person defined as an officer in terms of section 1 of the South African Schools Act;

(c) an educator as defined under the Employment of Educators Act, 1998 (Act No. 76 of 1998);

(d) a person employed in terms of the Public Service Act, 1994 (Proclamation No. 103 of 1994); or

(e) a person employed by a school board;

"**permit**" means a permit issued in terms of direction 12(1);

"**platooning**" means schools in which two separate sets of pupils use the same school building, one set in the morning and the other set in the afternoon;

"**Provincial Department of Education**" means the department responsible for education in a province and includes all public schools, further education and training institutions and departmental offices in such provinces;

"**Regulations**" means the Regulations made under section 27(2) of the Disaster Management Act, 2002, published under Government Notice No. R.480, in *Government Gazette* No. 43258 of 29 April 2020, as amended under—

(a) Government Notice No. 608, published in *Government Gazette* No. 43364 of 28 May 2020;

(b) Government Notice No. 714, published in *Government Gazette* No. 43476 of 25 June 2020;

(c) Government Notice No. 763, published in *Government Gazette* No. 43521 of 12 July 2020;

(d) Government Notice No. 846, published in *Government Gazette* No. 43577 of 31 July 2020;

(e) Government Notice No. 891, published in *Government Gazette* No. 43620 of 17 August 2020;

(f) Government Notice No. 999, published in *Government Gazette* No. 43725 of 18 September 2020;

(g) Government Notice No. 1053, published in *Government Gazette* No. 43763 of 1 October 2020;

(h) Government Notice No. 1104, published in *Government Gazette* No. 43825 of 21 October 2020;

(i) Government Notice No. 1199, published in *Government Gazette* No. 43897 of 11 November 2020;

(j) Government Notice No. 1290, published in *Government Gazette* No. 43964 of 3 December 2020;

(k) Government Notice No. 1346, published in *Government Gazette* No. 43997 of 15 December 2020;

(l) Government Notice No. 1370, published in *Government Gazette* No. 44009 of 17 December 2020;

(m) Government Notice No. 1421, published in *Government Gazette* No. 44042 of 24 December 2020;

(n) Government Notice No. R. 1423, published in *Government Gazette* No. 44044 of 29 December 2020;

(o) Government Notice No. R. 1424, published in *Government Gazette* No. 44045 of 29 December 2020;

(p) Government Notice No. R. 1435, published in *Government Gazette* No. 44051 of 29 December 2020;

(q) Government Notice No. R. 11, published in *Government Gazette* No. 44066 of 11 January 2021; and

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(r) Government Notice No. R. 69, published in *Government Gazette* No. 44130 of 1 February 2021;

"**South African Schools Act**" means the South African Schools Act, 1996 (Act No. 84 of 1996); and

"**third parties**" means persons who do not fall under the definition of an " official", but may access a school or offices, including, but not limited to—

(a) volunteer workers;

(b) persons appointed in terms of the Expanded Public Works Programme and as community development workers;

(c) food handlers;

(d) chief food handlers;

(e) parents of learners attending the school; and

(f) persons delivering goods or providing services to the school.

2. Objectives

The objectives of these directions are—

(a) to provide for arrangements for the return of educators, officials and learners to schools, hostels and offices;

(b) to provide for the schools, hostels and offices to comply with their obligations in accordance with—

  (i) the Regulations;

  (ii) all directions and circulars issued by the Minister of Employment and Labour and the Department of Public Service and Administration, in relation to COVID-19 and the national state of disaster; and

  (iii) Chapter H of the Personnel Administrative Measures, dealing with leave measures applicable to educators; and

(c) to ensure a uniform approach, as far as possible, in respect of arrangements by the Department of Basic Education, Provincial Departments of Education, for the return of learners and officials to schools, hostels and offices.

3. Scope and application

(1) These directions apply to—

  (a) all schools, hostels and offices;

  (b) learners;

  (c) officials;

  (d) third parties; and

  (e) governing bodies and school boards.

(2) The provisions contained in these directions apply for the duration of the national state of disaster, unless otherwise indicated.

4. Entry to school premises

(1) No person, other than a learner or official, may enter a school premises or hostel, unless such person obtains the permission of, and makes arrangements with, the principal or Head of Department in advance before entering the school premises or hostel.

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(2) Sub-direction (1) does not preclude any state institution supporting constitutional democracy from executing their mandate.

5. Opening of schools for academic year

(1) All public schools must be reopened as follows:

Arrangements for reopening of schools	Return to school date
(a) The principal, the school management team including Education Assistants and General Assistants (Basic Education Employment Initiative) and non-teaching staff must return to school	25 January 2021
(b) All educators must return to school	1 February 2021
(c) Learners must return to school	15 February 2021

(2) Independent schools must delay the date for the reopening of schools for learners to return to school for a period of two weeks from the date of the pronouncement of the Minister, on 15 January 2021.

(3) Independent schools may not open earlier than the two weeks' period as contemplated in sub-direction (2).

(4) Officials may access school premises during the period of closure if required to do so, for purposes of preparation in anticipation of the reopening of schools.

(5) All conditions in the Directions and Regulations published in relation to health, safety and social distancing measures to contain the spread of COVID-19, under Alert Level, still apply under Adjusted Alert Level 3 and must be adhered to.

(6) Only those schools and offices that have complied with the minimum health, safety and social distancing measures on COVID-19, as contemplated in these Directions and the Regulations, are allowed to open, as contemplated in sub-direction (1): Provided that a public school must also have all the COVID-19 essentials in place.

(7) A school or office that has failed to comply with the minimum health, safety and social distancing measures on COVID-19, as contemplated in these Directions and the Regulations, remains closed until all the health, safety and social distancing measures are in place.

(8) The Head of Department, or a person duly authorised by him or her, must continuously monitor and evaluate the opening of schools and the maintenance of hygiene and safety standards for the duration of the national state of disaster and must report, in writing, every two weeks, to the Department of Basic Education on—

(a) the number of COVID-19 cases in schools;

(b) any failure to meet the required minimum health, safety and social distancing measures on COVID-19, including those set out in section 5 of the DBE Standard Operating Procedures and the DBE Guidelines, including the COVID-19 essentials, in the case of a public school; and

(c) the Head of Department's determination on whether a school is permitted to open, in terms of sub-direction (6).

(9) Should it be determined, in terms of sub-direction (8)(c), that a school does not meet the minimum health, safety and social distancing requirements on COVID-19, the Head of Department, or a person duly authorised by him or her, must, together with the school, formulate a plan within three days from such determination that includes, but is not limited to, the following:

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(a) Scope of the problem;

(b) measures taken to address the problem; and

(c) any challenges experienced in addressing the problem.

(10) The school must ensure that the plan, as contemplated in sub-direction (9), is communicated in writing to officials, parents and learners within seven calendar days.

(11) The Head of Department, or a person duly authorised by him or her, must make reasonable arrangements with schools to ensure the provision of learning material and continued teaching to learners who are unable to attend school due to—

(a) an underlying health condition;

(b) being self-isolated or quarantined due to COVID-19 symptoms or testing positive for COVID-19;

(c) a decision taken by the Head of Department to close a school or part of a school, after consultation with a health official in accordance with the DBE Standard Operating Procedures as a result of a confirmed COVID-19 case; or

(d) a determination made in terms of sub-direction (8)(c).

(12) A parent, caregiver or a designated family member, must ensure that the teaching and learning material, as contemplated in sub-direction (11), are collected or accessed as per arrangement with the school.

(13) The Head of Department must ensure that the schools continue to conduct assessments of learners and provide feedback to the learners or parents.

(14) A school, must comply with the social distancing and timetable models, as contemplated in direction 16.

(15) The Head of Department must ensure that the National School Nutrition Programme is made accessible to every qualifying learner.

(16) Aftercare facilities that are managed by or operating at a school, and aftercare facilities in education support centres, are allowed to reopen: Provided that they comply with the minimum health, safety and social distancing measures and requirements on COVID-19, referred to in section 5 of the DBE Standard Operating Procedures and the DBE Guidelines.

(17) Scholar transport must comply with the directions issued by the Department of Transport.

6. School attendance

(1) A parent, caregiver or a designated family member of a learner may choose not to send the learner to school for reasons that may include—

(a) any medical condition of the learner, including comorbidities;

(b) anxiety and fear related to COVID-19, concern for family members that are over the age of 60 or concern for family members with comorbidities;

(c) a preference for the learner receiving learning and teaching instruction through the online or virtual platforms provided by an independent institution, which is not related to the school that the child is registered at;

(d) a preference for the learner receiving learning and teaching instruction through the online or virtual platforms provided by the school; or

(e) an application for home education and deregistration of a learner from the school.

(2) (a) A parent, caregiver or a designated family member who does not send a learner to school for any of the reasons contemplated in sub-direction (1)(a), (b) or (c) must apply, through the school that the learner attends, in terms of section 4 of the South African Schools Act, to the Head of Department, or a person duly authorised by him or her, for the full or partial exemption of a learner from compulsory school attendance for the duration of COVID 19.

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(b) The application contemplated in paragraph (a)—

(i) must be on a form substantially similar to Annexure A1, stating the reasons for the application for exemption, which should include evidence of a medical condition, in instances where the reasons relate to a medical condition or comorbidity;

(ii) must be accompanied by a form substantially similar to Annexure A2, declaring the commitment for taking responsibility for the learner's continued learning at home, which outlines the conditions that need to be adhered to by the parent, caregiver or a designated family member; and

(iii) may be subject to conditions.

(c) The Head of Department, or a person duly authorised by him or her, must make arrangements with the school, to ensure that the school consults with parents, caregivers or designated family members to receive the learning material for learners who are granted full or partial exemption from attending school, to ensure that continued learning takes place.

(d) A parent, caregiver or a designated family member who chooses not to send a learner to school must ensure that teaching and learning materials are collected or accessed, as per arrangement with the school, to ensure that continued learning takes place.

(3) A parent, caregiver or a designated family member who chooses not to send a learner to school for the reason contemplated in sub-direction (1)(d), is not required to apply for exemption from compulsory school attendance.

(4) (a) A parent, caregiver or a designated family member who chooses to deregister their child from the school and apply for a learner to be enrolled for home education, as contemplated in sub-direction (1)(e), must comply with the legal requirements for the provision of home education, as contemplated in section 51 of the South African Schools Act.

(b) A parent, caregiver or a designated family member of a learner who is deregistered from a school will have to reapply for admission and adhere to the admission requirements if they wish to return to a public school.

(5) Where a learner is self-isolated or quarantined due to being in contact with a person who has tested positive or is displaying symptoms of COVID-19, or is isolated following testing positive for COVID-19—

(a) the parent, caregiver or a designated family member must inform the school as soon as possible of the learner's condition; and

(b) the school must inform the Head of Department of the incident through the district office.

(6) Where a learner tested positive for COVID-19 through the processes at the school and the school is aware of the results, the school must, as soon as possible—

(a) inform the parent, caregiver or a designated family member of the learner's condition and—

(i) request them to fetch the learner from school;

(ii) advise them to refer the learner to a medical practitioner; and

(iii) advise them to keep the learner self-isolated or quarantined at home; and

(b) inform the Head of Department of the incident through the district office.

(7) The application process for exemption, as contemplated in sub-direction (2)(b) also applies to learners registered at a school but who fall outside compulsory school attendance as regulated in section 3 of the South African Schools Act.

(8) A parent, caregiver or a designated family member of a learner who has already applied in 2020 for the full or partial exemption from compulsory school attendance for any of the reasons contemplated in sub-direction (1), and whose application was successful, is not required to re-apply for exemption.

(9) The principal of the school, or the person duly authorised by him or her, must, with the consent of a

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parent, caregiver or a designated family member of a learner, make arrangements for a learner who is registered at the school to receive psychosocial support services, where required.

7. Administering application for exemption

(1) Where a parent, caregiver or a designated family member of a learner applied to the Head of Department, or a person duly authorised by him or her, for full or partial exemption of the learner from compulsory school attendance, as contemplated in direction 6, the Head of Department must exempt the learner, as contemplated in direction 6, if he or she is satisfied that—

(a) the exemption is in the interest of the learner;

(b) the parent, caregiver or a designated family member will take responsibility to oversee the learning of the learner at home; and

(c) the parent, caregiver or a designated family member will comply with any reasonable conditions set by the Head of Department for the full or partial exemption.

(2) Where a parent, caregiver or a designated family member of a learner has applied for exemption of a learner from compulsory school attendance, as contemplated in direction 6, the learner is exempted from attending school until such time as the Head of Department has considered and responded to the application for exemption.

(3) The Head of Department must consider and finalise the application for exemption within 30 days of receipt of the application.

(4) Subject to sub-direction (5), the Head of Department may withdraw the exemption referred to in sub-direction (1).

(5) The Head of Department may not withdraw the exemption until he or she—

(a) has informed the parent, in writing, of his or her intention to do so and the reasons therefor;

(b) has granted the parent an opportunity to make representations to him or her in relation to such decision; and

(c) has duly considered any such representations received.

(6) A parent, caregiver or a designated family member who is aggrieved by the decision of the Head of Department to withdraw an exemption of a learner from compulsory school attendance in terms of sub-direction (4), may lodge an appeal, in writing, to the Member of the Executive Council against the decision to withdraw the exemption.

8. Registration status of learner and marking of attendance register

(1) In the event that a learner is granted an exemption from compulsory school attendance, as contemplated in direction 6, or is unable to attend school, as contemplated in direction 5(11)—

(a) nothing in these Directions purports to alter the registration status of a learner at the specific school where the learner is registered; and

(b) the learner continues to be registered with their school.

(2) A school must maintain accurate daily attendance registers of learners.

(3) A learner must be marked absent in the attendance register when the learner is not physically present at school.

(4) The school must maintain records of—

(a) all learners who are unable to attend school for reasons contemplated in direction 5(11); and

(b) all exemptions granted in terms of direction 6.

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9. Learners with special educational needs

(1) (a) All public schools, including public schools for learners with special education needs, as contemplated by the South African Schools Act, must comply with all directions, guidelines and circulars regarding the reopening of schools.

(b) In addition to paragraph (a), all public schools, including public schools for learners with special education needs, as contemplated by the South African Schools Act, must comply with the guidelines developed for the specific categories of learners, as contained in the DBE Standard Operating Procedures.

(2) Officials who are unable to practise social distancing from learners with special education needs must be provided by the Provincial Department of Education with appropriate personal protective equipment, including protective clothing, where such provision is necessary.

(3) Officials appointed to carry out symptom screening, in schools for deaf learners, must be able to communicate using South African Sign Language. Where this is not possible, a sign language interpreter must be available to ensure proper communication with the learners.

(4) Written communication for blind learners, as well as those who are Deaf-blind, must be through Braille.

(5) The Provincial Department of Education must, at a minimum, provide the following personal protective equipment to learners with visual and hearing impairments:

(a) Face shields, in the case of blind learners;

(b) cloth face masks, in the case of low vision learners, teachers and support staff; and

(c) face shields, in the case of teachers, support staff and learners in schools for the deaf.

(6) Where a learner with special education needs does not return to school for any of the reasons referred to in direction 5(11)—

(a) the Head of Department must make all reasonable efforts to ensure—

(i) the availability and distribution of teaching and learning material in appropriate modes and access to remote support from teachers;

(ii) the provision for loan of education-specific assistive devices for use at home, where necessary; and

(iii) the provision of and access to therapeutic services where necessary; and

(b) a parent, caregiver or a designated family member of such learner must—

(i) on a form substantially similar to Annexure A1, apply, as contemplated in direction 6(2)(b), for full or partial exemption of the learner from compulsory school attendance;

(ii) specifically request support for teaching and learning material, assistive devices or therapeutic services, as contemplated in paragraph (a); and

(iii) ensure that any teaching and learning material and assistive devices, as contemplated in paragraph (a), are collected or accessed and returned as per arrangement with the school.

10. Opening of hostels

(1) A hostel may be permitted to open: Provided that it complies with the minimum health, safety and social distancing measures and requirements on COVID-19, referred to in section 5 of the DBE Standard Operating Procedures and the DBE Guidelines and, in the case of a public school, also has all the COVID-19 essentials in place and the principal or chairperson of the governing body or school board or their delegated official notifies the Head of Department, on a form substantially similar to Annexure B, of the opening.

(2) The notification contemplated in sub-direction (1) must be accompanied by a signed declaration by the

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principal and chairperson of the governing body or school board or their delegated official—

(a) on a form substantially similar to Annexure B1, in the case of public schools; or

(b) on a form substantially similar to Annexure B2, in the case of independent schools,

confirming that the hostel complies with the minimum health, safety and social distancing measures and requirements on COVID-19, referred to in section 5 of the DBE Standard Operating Procedures and the DBE Guidelines and, in the case of a public school, has all the COVID-19 essentials in place.

(3) Hostels may open once the notification and declaration, as contemplated in sub-directions (1) and (2), have been submitted to the Head of Department: Provided that the Provincial Department of Education reserves the right to conduct an inspection, once the hostels have opened to verify the hostel's compliance with the measures and requirements, as confirmed in terms of sub-direction (2).

(4) Subject to sub-direction (5), if a hostel is found not to have complied with the measures and requirements, as confirmed in terms of sub-direction (2)—

(a) the hostel will be closed until such time as the hostel complies with these measures and requirements;

(b) no learners will be allowed on the premises of the hostel; and

(c) the principal or chairperson of the governing body or school board or their delegated official must, as soon as reasonably possible—

(i) notify the parents, caregiver or designated family member of the learners, in writing, of the reason for the closure of the hostel;

(ii) request the parents, caregiver or designated family member of the learners to fetch the learners from the hostel; and

(iii) make arrangements with the parents, caregiver or designated family member of the learners to ensure the provision of learning material and continued teaching to learners.

(5) (a) In order to provide for the necessary suitable accommodation needs of learners, including learners with special education needs, if a hostel exceeds the number of learners that it can accommodate in accordance with social distancing requirements, the hostel will not be required to close in its entirety: Provided that the school or hostel makes provision for alternatives, including those contemplated in direction 16(2), in order to ensure that the accommodation of learners in hostels complies with health, safety and social distancing requirements.

(b) Where a hostel cannot provide alternatives, as contemplated in paragraph (a), the Provincial Department of Education must assist in the provision of additional infrastructure capacity to provide for the accommodation needs of such learners, including alternative accommodation for a hostel.

(6) The principal or chairperson of the governing body or school board or their delegated official may appeal to the MEC responsible for education in the province, in writing, within seven days from the date of notification of a decision, in terms of sub-direction (4), to close the hostel.

(7) The MEC responsible for education must, within seven days of receipt of an appeal, as contemplated in sub-direction (6), inform the hostel, in writing, of his or her decision and the reasons for the decision.

(8) The Provincial Department of Education must assist in the provision of any additional human resource capacity that is reasonably necessary for the operation of hostels.

(9) This direction applies to the hostels of all public schools, including public schools for learners with special education needs, as contemplated by the South African Schools Act.

11. Sport and extracurricular activities

(1) Subject to sub-direction (2) and in compliance with social distancing, hygiene and safety measures to prevent and combat the spread of COVID-19, non-contact sport training and matches, non-contact sport-

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related activities and all arts and culture school-based activities in schools, may resume without any spectators.

(2) The following safety measures must be adhered to when resuming the activities contemplated in sub-direction (1):

(a) The number of persons in the sporting venues, change rooms or training areas, at any given time, must not be more than 50% of the capacity of the venue with persons observing the social distancing requirements;

(b) face masks must be worn by all persons entering the sporting venues, change rooms or training areas, except when participating in training or matches;

(c) there must be sufficient quantities of hand sanitizers with at least 70% alcohol content available for use by all officials, coaches, assistants, learners and participants;

(d) there must be facilities for washing of hands with soap and water;

(e) all windows and doors must remain open, where feasible, to ensure adequate ventilation;

(f) social distancing must be maintained at all times; and

(g) the sharing of water bottles, energy drinks and other drinks is not allowed.

(3) Contact sport training may resume: Provided that all social distancing, hygiene and safety measures are observed and that there is no physical contact between participants during training.

(4) The school must ensure that sporting venues, tools and equipment are cleaned and sanitized before and after any sporting activities.

(5) Subject to compliance with the Regulations for Safety Measures in Public Schools, as published under Government Notice No. 1040 in *Government Gazette* No. 22754 of 12 October 2001, national championships and tournaments for non-contact sport that require learners to travel to other schools or provinces is suspended under Adjusted Alert Level 3.

(6) Subject to strict adherence to all social distancing, hygiene and safety measures, co-curricular and enrichment programmes, such as oral history, spelling bee, moot court, speech contests, debates and school clubs, may resume activities and competitive engagement may take place on virtual platforms as travel to other schools and provinces are suspended.

(7) Subject to strict adherence to all social distancing, hygiene and safety measures, solo vocal rehearsals practise are permitted.

(8) Choir practise or rehearsals, choir competitions, choir performances and interschool choir events are suspended under Adjusted Alert Level 3.

12. Issuing of permits

(1) Officials who have to commute to and from work within the declared curfew hours must have a permit on a form that is substantially similar to Form 7 of Annexure A, attached to the Regulations.

(2) A permit referred to in sub-direction (1) may be issued by the Head of Department or a delegated official or, in the case of a school, by a principal or a person delegated by him or her.

13. General safety measures at schools, hostels and offices for duration of COVID-19 pandemic

(1) The Provincial Department of Education is responsible for the provisioning of personal protective equipment and other COVID-19 essentials for officials and learners in public schools and hostels.

(2) To ensure the sufficient supply of cloth face masks, in compliance with regulation 34(3)(c) of the Regulations and face shields for learners with special educational needs, the principal of a public school, must request the Provincial Department of Education, in writing, through the district office, to procure

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cloth face masks and face shields as required by a public school.

(3) The District Director must process the request by the principal within three days of receipt thereof and forward it to the Provincial Department of Education, without delay.

(4) The Provincial Department of Education must ensure that the procurement of cloth face masks is finalised and that the cloth face masks are delivered to public schools timeously.

(5) All schools and offices must develop a workplace plan containing the following information:

(a) Which employees are permitted to work;

(b) what plans are in place for the employees at the workplace;

(c) what health protocols are in place to protect employees from COVID-19; and

(d) the details of the COVID-19 compliance officer.

(6) A school must send out a notice to all parents informing them that they must not send learners to school if the learners have any of the observable symptoms associated with COVID-19, including fever, cough, sore throat, redness of eyes and shortness of breath or difficulty in breathing, body aches, loss of smell or loss of taste, nausea, vomiting, diarrhoea, fatigue or weakness, or has been in direct contact with a person who is suspected to have COVID-19.

(7) Every school, hostel and office must implement the health and safety measures as contained in these Directions, section 5 of the DBE Standard Operating Procedures and the DBE Guidelines.

14. Symptom screening

(1) All persons entering any school premises, hostel or office must be screened at the entrance.

(2) Screening must be conducted—

(a) by the persons who have either been identified by the school or by the Head of Department; and

(b) in accordance with the Department of Health Protocols and section 5 of the DBE Standard Operating Procedures and the DBE Guidelines.

(3) All persons who conduct screening must receive the relevant training.

(4) Any person who has any COVID-19 symptoms must immediately report such symptoms to the COVID-19 compliance officer of the school, hostel or office or any person designated by him or her.

(5) If a person presents with the symptoms referred to in direction 13(6), or informs the COVID-19 compliance officer or designated official of these symptoms, the school, hostel or office must—

(a) not permit the person to enter the premises; or

(b) if the person is already on the premises of a school, hostel or office—

(i) immediately isolate the person, and require that person or, in the case of a learner, advise the parent or guardian, to make arrangements to be transported in a manner that does not place any other person or members of the public at risk, either to be self-isolated or to go for a medical examination or testing;

(ii) assess the risk of transmission, disinfect the area and any official's or learner's workstation or sleeping quarters, in the case of a hostel;

(iii) refer those persons who may be at risk for screening; and

(iv) take any other appropriate measure to prevent possible transmission.

(6) If there is evidence that any official contracted COVID-19 as a result of occupational exposure, the school must lodge a claim for compensation in terms of the Compensation for Occupational Injuries and Diseases Act, 1993 (Act No. 130 of 1993) in accordance with the Notice on Compensation for Occupationally-acquired Novel Corona Virus Disease (COVID-19), published under Government Notice No. 193, in

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Government Gazette No. 43126 of 23 March 2020, if applicable.

(7) If any person has been diagnosed with COVID-19 and isolated in accordance with the Department of Health Guidelines, a school, hostel or office may only allow the return of such person to the school, hostel or office on condition that he or she has undergone a medical assessment confirming his or her fitness to return.

(8) The Minister, in consultation with the Minister of Health, will regularly review the DBE Standard Operating Procedures and DBE Guidelines to ensure that health, safety and social distancing measures are consistent with the current and best practices.

15. Sanitizers, disinfectants and masks

(1) For the purposes of these Directions, a hand sanitizer must be one that contains at least 70% alcohol and complies with the recommendations of the Department of Health.

(2) Every school, hostel and office must ensure that there are—

(a) easily accessible, sufficient quantities of hand sanitizers, based on the number of learners, educators or officials or other persons who access the school, hostel or office, at the entrance of, and in, the workplace or sleeping quarters, which the persons are required to use; and

(b) facilities for washing of hands with soap and clean water.

(3) Every school, hostel and office must take proper measures to ensure that—

(a) all work surfaces and equipment are cleaned before school or work begins, or after school or work ends;

(b) classrooms, sleeping quarters and water and sanitation facilities are cleaned at least once a day by appointed cleaners; and

(c) surfaces that are touched frequently by many people (railings, light switches, communal taps, braille signage, lunch tables, sports equipment, door and window handles, toys, teaching and learning aids, etc.) are cleaned more frequently.

(4) Every Provincial Department of Education must—

(a) provide each official and learner at public schools, with two cloth face masks or face shields; and

(b) require learners and any other person entering the school premises, hostel or office to wear a cloth face mask, a homemade item that covers the nose and mouth or another appropriate item to cover the nose and mouth.

16. Social distancing and timetable models

(1) Every school, hostel or office must comply with the social distancing requirements as prescribed in the Regulations, DBE Standard Operating Procedures and DBE Guidelines.

(2) Subject to sub-direction (1), schools may consider and apply any of following available timetable models suitable for their context and functionality:

(a) Daily and weekly rotation;

(b) bi-weekly rotation;

(c) platooning or shifts;

(d) traditional and daily attendance; or

(e) a hybrid of the latter.

(3) Schools with large enough facilities to comply with health, safety, and social distancing requirements do not have to change their traditional and daily timetable models, and may continue to operate in

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accordance with those timetable models.

(4) A school that has a large enough facility may accommodate more than 50 learners officials and parents in that facility at a time, strictly for educational purposes:

Provided that all health, safety and social distancing measures for COVID-19 are complied with.

17. Curriculum trimming and reorganisation

(1) In order to accommodate the teaching time lost as a result of the national state of disaster and the adjustment of timetables, the curriculum, as articulated in the Curriculum and Assessment Policy Statement, has been reviewed by the Minister in accordance with section 3(4)(l) of the National Education Policy Act, 1996 (Act No. 27 of 1996), which empowers the minister to determine national policy for curriculum frameworks, core syllabuses and education programmes.

(2) The curriculum recovery guidelines aimed at supporting the management of the learning losses and the catch-up programmes at school level, include Circular S13 of 2020, which released the curriculum recovery 2021 Annual Teaching Plans (ATPs) for Grades 1-12, and PowerPoint presentations per subject, per grade for mediation of the recovery ATPs in all subjects and grades are accessible on the website of the Department of Basic Education, through the following link:

https://www.education.gov.za/2021ATPs.aspx.

18. Withdrawal of directions

The Directions regarding the reopening of schools and measures to address, prevent and combat the spread of COVID-19 in the Department of Basic Education, all Provincial Education Departments, all education district offices and all schools in the Republic of South Africa, issued under Government Notice No. 343, published in *Government Gazette* No. 43465 of 23 June 2020, as amended under—

(a) Government Notice No. 357, published in *Government Gazette* No. 43488 of 29 June 2020;

(b) Government Notice No. 370, published in *Government Gazette* No. 43510 of 7 July 2020;

(c) Government Notice No. 371, published in *Government Gazette* No. 43511 of 8 July 2020;

(d) Government Notice No. 411, published in *Government Gazette* No. 43578 of 2 August 2020;

(e) Government Notice No. 503, published in *Government Gazette* No. 43715 of 15 September 2020;

(f) Government Notice Number 579 published in *Government Gazette* No. 43826 of 21 October 2020;

(g) Government Notice Number 748 published in *Government Gazette* No. 44054 of 31 December 2020; and

(h) Government Notice Number 18 published in *Government Gazette* No. 44096 of 22 January 2021,

are hereby withdrawn.

19. Short title and commencement

These directions are called the Directions regarding the reopening of schools and measures to address, prevent and combat the spread of COVID-19 in the National Department of Basic Education, and Provincial Departments of Education, and all schools in the Republic of South Africa, and come into operation on the date of publication thereof in the Government *Gazette*.

Annexure A1

Application for exemption of learner from school attendance

(Application in terms of directions 6(1)(a), 6(1)(b), 6(1)(c), 6(2)(a), 6(2)(b), 9(6)(b)(i) and 9(6)(b)(ii))

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(To be completed by the parent/caregiver/designated family member)

I, _____ *(Name and surname)*, the parent, caregiver or a designated family member *(delete whichever is not applicable)* of_____*(Name of learner)* who is in Grade _____at _____*(Name of school)*, hereby apply to the Head of Department to exempt the learner from compulsory school attendance, in terms of section 4 of the South African Schools Act, 1996 (Act No. 84 of 1996), for the period of the national state of disaster.

I do so, and take full responsibility, to oversee the learning of the learner at home as indicated in the signed agreement (Annexure A2). The reasons for my application for exemption are as follows:

Reason	**Further Details**
Underlying health condition and/or comorbidity of the learner or a close family member	
General concern over the risk of transmission of COVID-19	

In respect of a learner with a medical condition, as contemplated in direction 6(1)(a): Evidence of medical condition of learner is attached/not attached *(delete whichever is not applicable)*.

In respect of a learner with special needs, as contemplated in direction 9(6), the parent/caregiver/designated family member of the learner must, in terms of direction 9(6)(b)(ii), specify the support needs of the learner in respect of teaching and learning material, assistive devices or therapeutic services, as follows:

Part	**Needs of Learner**	**Further Details**
A	Teaching and Learning Support Material	
B	Assistive Device	
C	Therapeutic Service	

Signed at _____ on this _____ day of _____ 2021.

_____ _____

Parent/caregiver/designated family member Full name and surname of parent/ caregiver/designated family member

Contact number: _____

Annexure A2

Parent acceptance form: To adhere to conditions for exemption from compulsory school attendance

(Application in terms of directions 6(2)(a), 6(2)(b), 9(6)(b)(i) and 9(6)(b)(ii))

(To be completed by the parent/caregiver/designated family member)

I_____ *(Name and surname)*, the parent, caregiver or a designated family member *(delete whichever is not applicable)* of _____ *(Name of learner)* who is in Grade _____ at _____ *(Name of school)*, hereby accept the following conditions for the exemption of the learner from compulsory school attendance for the duration of national state of disaster:

(1) I accept and agree that I will take responsibility—

(a) to oversee the daily learning of the learner at home, including the daily work and assessments;

(b) to ensure that the learner is informed of the work that must be learned and the work that must be completed on a daily basis; and

(c) to ensure that all work and assignments are collected or accessed and returned to school, in accordance with the arrangements made with the school.

(2) I accept and agree that, if the conditions in this Annexure are not met, the exemption from compulsory school attendance may be withdrawn.

(3) I accept and understand that, if I am unable to accept these conditions and the associated responsibilities, then the learner should continue to attend school.

Signed at _____ on this _____ day of _____ 2021.

_____

Parent/Caregiver/Designated family member

_____

Full Name

Contact number: _____

Annexure B

Notification of opening of hostel(s)

(Notification in terms of directions 10(1) and 10(2))

(To be completed by the principal, chairperson of the school governing body or board, or their delegated official)

I, _____ *(Name and surname)*, the principal/ chairperson of the school governing body or board / delegated official *(delete whichever is not applicable)*, of _____ *(Name of school)*, hereby notify the Head of Department of my/our decision to open the hostel(s), as contemplated in direction 10(1).

School and hostel particulars

Province:	
District:	
Circuit:	
Name of school and hostel(s):	
EMIS Number:	
Principal's name and surname:	
Tel / Cell No:	
E-mail Address:	
Highest Grade:	
Lowest Grade:	
Number of learners:	

Signed at _____ on this _____ day of _____ 2021.

_____

Principal

Date:

_____

Chairperson of the governing body/ school board

Date:

Official Stamp

Annexure B1

Declaration confirming compliance of public school

(Declaration in terms of direction 10(2)(a))

(To be completed by the principal, chairperson of the governing body, or their delegated official, in respect of public schools, and attached to Annexure B)

I, _____ *(Name and surname)*, the principal / chairperson of the governing body or school board / their delegated official *(delete whichever is not applicable)*, of _____ *(Name of school)*, hereby declare that the hostel(s) has/have complied with the health, safety and social distancing measures for COVID-19, set out in the DBE Standard Operating Procedures and the DBE Guidelines and has/have all the COVID-19 essentials in place.

I further acknowledge that it is the responsibility of the school governing body, the principal and/or the school board to take all reasonable steps to comply with the health, safety and social distancing measures for COVID-19, set out in the DBE Standard Operating Procedures and the DBE Guidelines.

Signed at _____ on this _____ day of_____ 2021.

_____

Principal

Date:

_____

Chairperson of the governing body/ school board

Date:

Official stamp

Annexure B2

Declaration confirming compliance of independent school hostel(s)

(Declaration in terms of direction 10(2)(b))

(To be completed by the principal, chairperson of the governing body, or their delegated official in respect of independent schools, and attached to Annexure B)

I, _____ *(Name and surname)*, the principal/chairperson of the school board/their delegated official *(delete whichever is not applicable)*, of _____ *(Name of school)*, hereby declare that the hostel(s) has/have complied with the health, safety and social distancing measures for COVID-19, set out in the DBE Standard Operating Procedures and the DBE Guidelines.

I further acknowledge that it is the responsibility of the principal and/or the school board to take all reasonable steps to comply with the health, safety and social distancing measures for COVID-19, set out in the DBE Standard Operating Procedures and the DBE Guidelines.

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I further accept that any civil liability that may arise from the school's decision to reopen its hostel(s) and the manner in which the hostel(s) operate/s following such reopening, shall fall exclusively on the school and that the relevant Department of Basic Education and Provincial Departments of Education shall bear no liability in this regard.

Signed at _____ on this _____ day of _____ 2021.

_____

Principal

Date:

_____

Chairperson of the governing body/ school board

Date:

Official stamp